

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Order Granting Mandate Shortening Motion granted

Entered June 22, 2026.

The court grants the parties' June 18 joint motion to shorten the time for issuance of mandate. The parties have represented that neither will seek panel rehearing, rehearing en banc, or a stay and that prompt return of jurisdiction will assist district-court management of the remanded retaliation claim. On those representations and for good cause, the ordinary post-judgment period is shortened under Federal Rule of Appellate Procedure 41.

The mandate date is set for June 22, 2026. This order does not itself alter the June 15 opinion or judgment. The district court's narrow exclusion of the late Wynn declaration remains affirmed, summary judgment remains vacated, and the retaliation claim remains remanded for further proceedings. The order determines only when that existing disposition may take effect. The clerk shall record the granted shortening before taking the separate steps necessary to release and issue mandate.

Counterfactual Order Granting Mandate Shortening Conditions and notice

The clerk is authorized to release mandate on June 22 and, upon entry of the release, to transmit the opinion and judgment to the United States District Court for the Eastern District of Virginia. No rehearing petition or stay request is pending. If counsel becomes aware before issuance that a representation supporting the joint motion is no longer accurate, counsel must notify the clerk immediately so the court may determine whether this order should be revisited.

Shortening does not waive a matter the appellate judgment left for the district court, admit excluded evidence, or direct a particular result on remand. It also does not transform the parties' joint timing request into agreement with every part of the opinion. The clerk shall serve this order electronically on both parties and retain the joint motion as the basis for the shortened date. A separate release order and mandate will identify the actual issuance event.